

Court No. - 29

Case :- WRIT - C No. - 31433 of 2019

Petitioner :- Smt. Maharani

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Prem Chand Saroj

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Heard Sri Niraj Srivastava, learned counsel for the petitioner and Sri Rajesh Yadav, learned counsel for respondent Nos. 3, 4 and 5.

The petitioner has preferred this petition challenging the demand notice dated 25.09.2018 for a sum of Rs.57,070/- as electricity dues.

Sri Rajesh Yadav submits that the aforesaid demand is on the basis of use of electricity by the petitioner which she defaulted in payment despite raising of the bills in that regard.

Learned counsel for the petitioner submits that the demand is *per-se* illegal.

In case the demand is illegal, the petitioner may approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within a period of 15 days from today. In case, she so approaches the Executive Engineer, she shall examine the matter, and on verification of the correct facts shall pass speaking order in regard to the liability of the petitioner to pay the aforesaid dues in accordance with law most expeditiously if possible within a period of six weeks from the date of submission of representation. For a period of three months or till the representation is considered and decided whichever is earlier, no recovery shall be made from the petitioner in pursuance of the impugned demand notice.

The writ petition is **disposed off**.

Order Date :- 14.10.2019

Nirmal Sinha